

SENATE No. 1448

The Commonwealth of Massachusetts

PRESENTED BY:

John F. Keenan

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to variances.

PETITION OF:

NAME:

John F. Keenan

DISTRICT/ADDRESS:

Norfolk and Plymouth

SENATE No. 1448

By Mr. Keenan, a petition (accompanied by bill, Senate, No. 1448) of John F. Keenan for legislation relative to variances. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to variances.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 10 of chapter 40A of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by striking out the third paragraph and inserting in place thereof the following
3 paragraph:—

4 If the rights authorized by a variance are not exercised within one year of the date of
5 grant of such variance, which shall not include such time required to pursue or await the
6 determination of an appeal referred to in section seventeen, such rights shall lapse; provided,
7 however, that the permit granting authority in its discretion and upon written application by the
8 grantee of such rights may extend the time for exercise of such rights for a period not to exceed
9 six months; and provided, further, that the application for such extension is filed with such
10 permit granting authority prior to the expiration of such one-year period. If the permit granting
11 authority does not grant such extension within thirty days of the date of application therefor, and
12 upon the expiration of the original one-year period, such rights may be reestablished only after
13 notice and a new hearing pursuant to the provisions of this section.